

23STCV10709 23STCV10709

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-14

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Case Number: 23STCV10709 Hearing Date: August 14, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Video Tech Services, Inc.

;

Plaintiffs,

vs.

Encore Group (USA) LLC

;

Defendants.

Case No.:

23STCV10709

Hearing Date:

August 14, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion
to Compel Responses to Special Interrogatories

(2) Motion
to Compel Responses to Requests for Production

(3) Motion
For Order Establishing Admissions

MOVING PARTY: Plaintiff Video Tech Services, Inc.

RESPONDING

PARTY: Defendant Encore Group (USA) LLC

(1) Motion
to Compel Responses to Special Interrogatories

(2) Motion
to Compel Responses to Requests for Production

(3) Motion
for Order Establishing Admissions

The court considered the moving
and opposition papers filed in connection with these motions.

DISCUSSION

Plaintiff Video

Tech Services, Inc. ("Plaintiff") moves the court for orders (1) compelling
defendant Encore Group (USA) LLC ("Defendant") to serve responses to
Plaintiff's first set of Special Interrogatories and first set of Requests for

Production; (2) deeming admitted the genuineness of the documents and the truth of the matters specified in the Requests for Admission served on Defendant; and (3) awarding monetary sanctions in favor of Plaintiff and against Defendant.

The court denies the motions because Defendant has presented evidence that it served verified responses which are substantially code-compliant to all three sets of outstanding discovery on July 31, 2026 by electronic mail. (McClintock Decl. ¶ 2; Exs. A-C.)

The court grants Plaintiff's request for sanctions in part. "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed . . . or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Ct., rule 3.1348(a).) The court finds that a reasonable award of sanctions on these three motions is \$1,980.00 (4 hours of attorney time x \$495.00 per hour.) (Walton Decl. ¶ 26.)

ORDER

The court DENIES plaintiff Video Tech Services, Inc.'s motion to compel responses to special interrogatories.

The court DENIES plaintiff Video Tech Services, Inc.'s motion to compel responses to requests for production.

The court DENIES plaintiff Video Tech Services, Inc.'s motion for order establishing admissions.

The court orders defendant Encore Group (USA) LLC to pay monetary sanctions to plaintiff Video Tech Services, Inc. in the amount of \$1,980.00 within 30 days of the date of this order.

The court orders plaintiff Video Tech Services, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 14, 2026

Robert B. Broadbelt III

Judge of the Superior Court